

25NWLC45364 25NWLC45364

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-07

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Case Number: 25NWLC45364 Hearing Date: August 7, 2026 Dept: Y

25NWLC45364: JPMORGAN CHASE BANK, N.A. vs ANGELIKA TOTH

Tentative Ruling:

The Court has read and reviewed Defendant Angelika Toth's ("Defendant") Motion to Compel Arbitration ("Motion") and supporting declaration and exhibits. No opposition was filed by Plaintiff JPMorgan Chase Bank, N.A. ("Plaintiff"). The Court takes judicial notice of the Complaint filed on August 14, 2025 and the attached Cardmember Agreement.

Defendant has elected to resolve Plaintiff's claims by binding arbitration and has made this request in his Answer and by filing this motion pursuant to the terms of the Cardmember Agreement. The Cardmember Agreement states that "all disputes between you and Chase must be resolved by BINGIND ARBITRATION whenever you or we choose to submit or refer a dispute to arbitration." (Complaint, Agreement, pg. 10) The Cardmember Agreement states that the party filing a Claim must select either Judicial Arbitration and Mediation Services ("JAMS") or the American Arbitration Association ("AAA") as the arbitration administrator.

Code of Civil Procedure section 1281.2 provides that a court shall order arbitration if it determines that an agreement to arbitrate exists and that a party to the agreement refuses to arbitrate. Once arbitration is compelled, the court must stay the action pending the outcome of the arbitration pursuant to Code of Civil Procedure section 1281.4.

Pursuant to Code of Civil Procedure sections 1281.2 and 1281.4, Defendant's Motion to Compel Arbitration and Stay Proceedings is GRANTED. The proceedings are stayed pending arbitration with AAA or JAMS as identified in the agreement.

The Court advances and vacates the current trial date of August 20, 2026. The Court also sets a Status Conference Re: Arbitration on February 8, 2027 at 8:30 a.m. in Department Y.

If the parties have not initiated Arbitration by the date of the Status Conference Re: Arbitration, the Court will reset the trial date at the request of either party and find that the right to arbitrate has been waived.

Plaintiff to give notice.